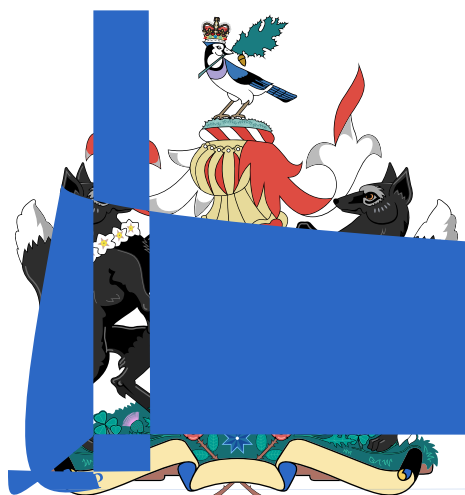




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CHAIR:

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3rd SESSION, 67th GENERAL ASSEMBLY
Province of Prince Edward Island
4 CHARLES III, 2026

(Bill No. 107)

An Act to Amend the Planning Act

Gordon McNeilly
MLA

PRIVATE MEMBER'S BILL

Andrea MacRae
Acting King's Printer
Charlottetown, Prince Edward Island

**For House
Use Only**

**Prince Edward Island
Legislative Assembly**

AMENDMENTS

ASSEMBLY / SESSION / YEAR 67th General Assembly / 3rd / 2026

BILL NUMBER: **107**

PAGE No. 2 of 5 PAGES

TITLE: **An Act to Amend the Planning Act**

[illegible]

NOTED:

CERTIFIED CORRECT:

COMMITTEE CLERK

CHAIR, IN COMMITTEE



AN ACT TO AMEND THE PLANNING ACT

BILL NO. 107

2026

BE IT ENACTED by the Lieutenant Governor and the Legislative Assembly of the Province of Prince Edward Island as follows:

- 1. The *Planning Act* R.S.P.E.I. 1988, Cap. P-8, is amended by the addition of the following after section 14:**

14.1 Decision of Minister

- (1) The Minister shall approve or refuse to approve the official plan within 90 days of the day on which it is received pursuant to clause 14(2)(b).

Procedure following Minister's refusal

- (2) Where the Minister refuses to approve the official plan under subsection (1), the Minister shall within 30 days return the official plan to the council with written reasons for the refusal.

- 2. The Act is amended by the addition of the following after section 18:**

18.1 Bylaws submitted to Minister

- (1) Municipal planning bylaws proposed by a council for the purpose of section 16 shall be submitted to the Minister for approval before being made.

Decision of Minister

- (2) The Minister shall approve or refuse to approve the proposed bylaws within 90 days of the day on which they are received under subsection (1).

Procedure following Minister's refusal

- (3) Where the Minister refuses to approve the proposed bylaws under subsection (2), the Minister shall within 30 days return the bylaws to the council with written reasons for the refusal.

EXPLANATORY NOTES

SECTION 1 amends the *Municipalities Act* (R.S.P.E.I. 1988, Cap. P-8), by adding a new section 14.1 that requires the Minister to either approve or refuse to approve an official plan that has been submitted to the Minister under clause 14(2)(b) within 90 days of the day on which the official plan was received. If the Minister decides to refuse to approve the official plan, the Minister must return it within 30 days to the council that submitted it, with written reasons for the refusal.

SECTION 2 amends the Act by adding a new section 18.1 that states explicitly that proposed bylaws to implement a municipality's official plan are required to be submitted to the Minister for approval before being made. This is implied by section 17, but no process is stated there. Once the proposed bylaws have been submitted for approval, the Minister is required to either approve or refuse to approve the bylaws within 90 days of the day on which they were received. If the Minister decides to refuse to approve the bylaws, the Minister must return them within 30 days to the council that submitted them, with written reasons for the refusal.

(Bill No. 107)

An Act to Amend the Planning Act

<i>STAGE:</i>	<i>DATE:</i>
2 nd Reading	April 15, 2026
3 rd Reading	
Private Member's Bill	
Private Bill	
Bill	
Bill	

SIGNATURES:

_____ !
_____ !
Honourable Dr. Wassim Salamoun, Lieutenant Governor
_____ !
_____ !
Honourable Brad Trivers, Speaker
_____ !
_____ !
Joseph Jeffrey, Clerk

Gordon McNeilly
MLA

PRIVATE MEMBER'S BILL

2026
3rd SESSION, 67th GENERAL ASSEMBLY